

## SecureOps Command — User Agreement (Terms of Service / End-User License)

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**Operator:** SOBBU LLC ("SOBBU", "we", "us") **Product:** SecureOps Command — web admin portal and mobile applications (the "Apps") **Last updated:** [EFFECTIVE DATE]

***IMPORTANT — NOT LEGAL ADVICE.** This is a template reflecting how SecureOps Command works. It is **not** legal advice and should be reviewed by a licensed attorney before use. Bracketed [ALL-CAPS] fields must be completed.*

By creating an account, signing in, or using the Apps, you agree to this User Agreement. If you do not agree, do not use the Apps.

### 1. Who we are and how this works

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SOBBU owns, develops, and operates SecureOps Command and provides it to organizations (your employer or the company that engaged you, your "Organization") under a separate subscription agreement. **SOBBU provides the software; your Organization controls your account, your data, your schedule, and your pay.** Questions about your employment, hours, pay, discipline, licensing, or assignments are between you and your Organization, not SOBBU.

### 2. Eligibility and accounts

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- You must be at least 18 years old and authorized by your Organization to use the Apps.
- Your access is tied to your Organization's deployment, selected by an organization code. The code is a routing convenience, not a login — you still need valid credentials issued for your Organization.
- You are responsible for keeping your password and device secure and for all activity under your account, whether or not authorized by you. Notify your Organization (or us) promptly of any unauthorized use.

### 3. License to use the Apps

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SOBBU grants you a limited, personal, revocable, non-exclusive, non-transferable license to use the Apps for your Organization's security-operations purposes, subject to this Agreement. SOBBU and its licensors retain all rights in the Apps. You may not copy, modify, reverse engineer, resell, or attempt to access another user's or another organization's data.

### 4. Acceptable use; anti-hacking

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**4.1 Prohibited conduct.** You agree not to:

- access data outside your assigned role, impersonate anyone, or share your account or credentials;
- falsify clock-in/out events, incident reports, schedules, or payroll information;
- misuse the emergency button or other safety features, or submit false alerts;

- upload unlawful, harassing, infringing, or malicious content;
- probe, scan, or test the vulnerability of the Apps or any related system or network, or breach or attempt to bypass any security, authentication, or access-control measure;
- introduce viruses, worms, ransomware, or other malicious code, or launch, facilitate, or participate in any denial-of-service or other attack on the Apps;
- scrape, harvest, or bulk-extract data, use automated tools (bots, scripts, crawlers) against the Apps, or interfere with or disrupt the integrity or performance of the Apps or the data they contain;
- access, tamper with, or use non-public areas of the Apps, SOBBU's systems, or another organization's deployment or data; or
- use the Apps in violation of any law or your Organization's policies.

**4.2 Irreparable harm; injunctive relief.** You acknowledge that a violation of this Section 4 may cause SOBBU immediate and irreparable harm — including harm to the security, integrity, and availability of the platform serving other organizations — for which money damages would be inadequate. You agree that SOBBU is entitled to seek injunctive and other equitable relief to prevent or stop any such violation, without posting a bond, **in addition to** recovering damages, losses, investigation and remediation costs, and reasonable attorneys' fees, and in addition to any remedies available under applicable computer-misuse laws (including the federal Computer Fraud and Abuse Act and Chapter 33 of the Texas Penal Code, where applicable).

## 5. Location, notifications, and device permissions

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- **Location:** while you are clocked in, the Apps capture GPS location for clock-in/out verification and live operational visibility to your Organization's administrators. Disabling location may prevent clock-in/out at sites that require geo-verification.
- **Push notifications:** the Apps may send operational notifications (schedule alerts, messages, emergencies). You can disable push in device settings.
- **SMS (if enabled):** text alerts are sent only where your Organization has enabled SMS, you have provided a valid mobile number, and you have opted in. You may opt out at any time.
- **Emergency button:** activating it creates an alert to your Organization's administrators and provides a phone number to call. **The Apps are not a replacement for 911 or professional emergency services** — in a real emergency, call your local emergency number directly.
- **Emergency contacts:** any emergency-contact phone number you provide is for manual/911 use by your Organization and is not used to send you automated texts.

## 6. Your content

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You retain ownership of the information and documents you submit. You grant SOBBU and your Organization a license to store, process, and use that content to operate the Apps and to meet legal obligations. You are responsible for the accuracy of what you submit.

## 7. Privacy

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Your personal information is processed to operate the Apps. Your Organization decides how your information is used and is the primary point of contact for privacy requests; SOBBU processes data on your Organization's behalf. Please review your Organization's privacy notice. For questions you may also contact [SOBBU CONTACT EMAIL].

## 8. Service availability

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The Apps are provided on an "as is" and "as available" basis. SOBBU does not guarantee uninterrupted, error-free, or fully secure operation and may modify, suspend, or discontinue features. Maintenance, updates, or your Organization's configuration may affect availability.

## 9. Suspension and termination

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Your access depends on your relationship with your Organization and on your Organization's subscription. SOBBU or your Organization may suspend or terminate your access for violations of this Agreement, for security reasons, or as required by law. Sections 4.2, 6, 10, 11, 12, and 13 survive termination.

## 10. Intellectual property

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SecureOps Command, including all software, designs, logos, and documentation (other than your Organization's branding and your own content), is owned by SOBBU and its licensors and is protected by law. App-store use is also subject to the applicable platform's terms (e.g., Apple/Google).

## 11. Disclaimers and limitation of liability

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**11.1 Disclaimers.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, SOBBU DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

**11.2 Security incidents.** No software or security program can guarantee prevention of every intrusion. **TO THE MAXIMUM EXTENT PERMITTED BY LAW, SOBBU IS NOT LIABLE TO YOU FOR ANY LOSS OR DAMAGE ARISING FROM UNAUTHORIZED THIRD-PARTY ACCESS TO, OR INTERFERENCE WITH, THE APPS OR YOUR INFORMATION — INCLUDING HACKING, CREDENTIAL THEFT, PHISHING, MALWARE, RANSOMWARE, DENIAL-OF-SERVICE ATTACKS, OR EXPLOITATION OF PREVIOUSLY UNKNOWN VULNERABILITIES — OR FROM ANY OTHER DATA OR SECURITY INCIDENT.** Your Organization is your point of contact regarding any incident affecting your information.

**11.3 Limitation of liability.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, SOBBU WILL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR DATA, ARISING FROM YOUR USE OF THE APPS. SOBBU'S TOTAL LIABILITY TO YOU FOR ANY CLAIM WILL NOT EXCEED [USER LIABILITY CAP USD]. Nothing limits liability that cannot be excluded by law.

## 12. Indemnification

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To the maximum extent permitted by law, you will defend, indemnify, and hold harmless SOBBU and its members, managers, officers, and personnel from and against any claims, demands, damages, losses, fines, investigation and remediation costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) your misuse of the Apps or violation of Section 4; (b) your violation of this Agreement or applicable law; (c) content or information you submit; or (d) unauthorized access resulting from your failure to secure your credentials or device — except to the extent caused by SOBBU.

## 13. Governing law and dispute resolution

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13.1 **Governing law.** This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-laws rules.

13.2 **Binding individual arbitration.** Except as provided in Section 13.4, any dispute, claim, or controversy arising out of or relating to this Agreement or the Apps will be resolved by **final and binding arbitration on an individual basis**, administered by the American Arbitration Association under its rules, before a single arbitrator, with the seat of arbitration in [ARBITRATION CITY], Texas. Judgment on the award may be entered in any court of competent jurisdiction.

13.3 **Class-action waiver.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, **ALL DISPUTES MUST BE BROUGHT IN THE PARTIES' INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING.** The arbitrator may not consolidate more than one person's claims or preside over any form of class or representative proceeding.

13.4 **Carve-outs.** Notwithstanding Section 13.2: (a) SOBBU may bring an action in any court of competent jurisdiction for claims relating to its intellectual property, for injunctive or other equitable relief (including under Section 4.2), or to collect amounts owed to it; and (b) either party may bring an individual claim in small-claims court in [SOBBU VENUE COUNTY] County, Texas (or, if you qualify, your county of residence) if it fits that court's jurisdiction. For any court proceeding permitted by this Section, the parties consent to the state and federal courts located in [SOBBU VENUE COUNTY] County, Texas, and **each party waives its right to a trial by jury** to the maximum extent permitted by law.

## 14. Changes

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We may update this Agreement. Material changes will be communicated through the Apps or by email. Continued use after the effective date means you accept the updated Agreement.

## 15. Contact

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Questions about this Agreement: [SOBBU CONTACT EMAIL] · SOBBU LLC, [SOBBU PRINCIPAL ADDRESS]. For account, schedule, pay, or data requests, contact your Organization's administrator.